

Court No. - 37

Case :- WRIT - C No. - 6125 of 2020

Petitioner :- Prasun Chowdhury

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ayush Khanna

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Shamim Ahmed, J.

Put up on 27.02.2020 as fresh in order to enable Sri Rajesh Yadav, learned counsel for the respondent nos. 3, 4 and 5 to seek instruction in the matter.

Order Date :- 20.2.2020

Pkb/

(Shamim Ahmed, J.) (Abhinava Upadhyaya, J.)

Court No. - 32

Case :- WRIT - C No. - 6125 of 2020

Petitioner :- Prasun Chowdhury

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ayush Khanna

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 15.6.2019 (Annexure no. 5 to the writ petition) and current monthly bill of Rs. 22,255/- (Annexure no. 6 to the writ petition) issued by the respondent no.2." "

Heard the learned counsel for the petitioner and Mr. Rajesh Yadav, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 19.3.2020 at 11.00 A.M. before the Respondent No.4,

Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.4, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned recovery citation shall stand revived automatically.

As prayed by the learned counsel for the petitioner, the petitioner is permitted to deposit a sum of Rs.50,000/- within two weeks from today,. As soon as the said amount is deposited by the petitioner, the respondents shall restore the electricity connection of the petitioner and the petitioner shall continue to pay all future charges as and when falls due.

With the above observations, the writ petition stands disposed of.

Order Date :- 27.2.2020

MLK